Terms and Privacy policy

Welcome and thank you for choosing the "Service" of our "Clicknic." "We" have created this "App" as a medium for users to receive counseling services from "Doctors" and "Counselors" for your convenient" to go to the right and appropriate decision. However, please always keep in mind that "service" of our "Clicknic" is to provide consultation by a doctor or a counselor but cannot replace medical treatment or meet a doctor at a medical facility.

The "Clicknic" may help for an emergency case, but it is not established for the purpose of providing services in an emergency case and it cannot be replaced by using an emergency medical system. Therefore, in the event of an emergency, please contact the emergency medical service via toll free no. 1669 for 24 hours.
Please read this agreement carefully before using the service, and please strictly adhere to the terms and conditions of this agreement. In case of doubt about the use of the service defined in this terms and conditions of this agreement, please contact us at (*)

Introduction
This agreement is made between you and Clicknic Company Limited, which sets out the terms and conditions for the use of the "app" as well as the "service" of the "company", regardless of the method of usage.

By using the "Service", it is considered that the user confirms that they have read and fully understood this Terms of Usage by accepting and bound by the terms, conditions, and terms of service as well as other terms under this agreement and agree to comply with "our" terms of use when using "our" "App."

The "company" reserves the right to add, change, cancel details, and terms and conditions in this agreement without notifying in advance. The user agrees to check the terms, conditions and service conditions as well as other terms every time that the service has been used. When the user uses the service of the "Clicknic," you agree and bound to the terms, conditions, and terms of service as well as other terms that are at the time of using the service.

The definition

- "We," "our," "us" and "Company" mean Clicknic Company Limited.
- "Clicknic", "App" and "Platform" means applications (*). Clicknic, including the service channels of the "company", which is a medium for online services or other websites with similar, proprietary services, including related services provided by "us."
- "Service" means the provision of communication channels for medical consultation as well as related services to facilitate the users such as a personal data storage system,

appointment system for medical consultation and coordination system for receiving medicines, which are provided through the “App” and “Platform” of “us.”

- “Doctor” means
  – Licensed doctor for working in medical area, the doctor who interacts with the patients who have not been diagnosed with health problems first, or
  – Dentists who are licensed to practice dentistry.
- “Counselor” means “doctor” and the following persons who provide advice through “our” “App.”
  – Pharmacists licensed to practice in the pharmaceutical industry or
  – Medical technologist licensed to practice medical technology or
  – Nurses that are licensed to practice nursing and midwife, or
  – Other people who have special expertise, such as physical therapists, psychotherapists, etc.

Notices and terms of service

- “Clicknic” is a provider of communication channels (“Services”) for consultation from “Doctors” or “Counselors” only without the aim of diagnosis, treatment, prevention, promotion, and it is to rehabilitate midwife or medical treatment in any way and cannot replace medical care or see a doctor at the hospital, whether in whole or in part.
- “App” may not be used in place of diagnosis, treatment, prevention, promotion and rehabilitation, midwifery, medical treatment, or medical treatment, and medical treatment or meeting with the doctorcannot be replacedeither in whole or in part. Any information contained in the “App” or any information provided by the “Counselor” or “Doctor.” That is given to you to make a decision in choosing your next stage of nursing treatment or medical treatment.
- “Clicknic” and “us” are not related to “Doctors” or “Counselors” who provide counseling through “App”. Consultation by “Doctors” or “Counselors” in the aforementioned detail is just a personal opinion of each “doctor” or “counselor” and has no binding on “us” and the “Clicknic”.
- “Clicknic” is willing to help you in an emergency situation as needed in case of an emergency such as providing basic advice Providing information and coordination with agencies that provide emergency medical care, etc. In addition, users know very well that the “Clicknic” is not made for the purpose of providing services in emergencies in any way, and it cannot replace the emergency medical system, and “we” are not responsible for any errors, delays, and adverse events in all cases whether it is caused by the system of “Clicknic” or from other relevant agencies.
- “Clicknic” will not be responsible for any loss or damage that occurred in any case, whether it is directly and indirectly from the use of “services”, “Clicknic” or the implementation of consultation from “doctors” or “counselors.”

Terms of use and user’s responsibility

General terms and responsibilities

- The user agrees that the user will not use the “Clicknic” in an illegal way and beyond the service objectives of the “Clicknic.”
- Users agree to not use inappropriate words during the service and will not contact the “doctor” or “counselor” of the “Clicknic” without using through the “App” or “platform”

provided by “us” without the consent of the “doctor” or “counselors.”

- To use the “Clicknic” service, the users must create their own account by creating this personal account, the user must be at least 20 years of age at the time of application and must have the legal capabilities. In addition, users certify that the information they provide is the current information is true, accurate, and complete.
- Users will not reveal the code to access their personal accounts with anyone or access other people’s personal accounts, whether or not with the owner’s permission or create more than 1 personal account (except for accounts linked to one’s own account which are created for minors whose service users are parents, guardians or legal representatives of minors) and the confidentiality of personal account must be kept. It is provided that “Clicknic” reserves the right to take any action that is reasonably necessary to protect or maintain the personal account information of the user the statistics as well as other Clicknic’s accounts in overall, without providing any prior notices.
- The “Clicknic” is not responsible for any damage arising out of the use of the user’s personal account or allowing any person to use their personal account. However, a personal account of other people are prohibited for using as well.
- In the case of minors using the “Clicknic” service and personal accounts are created by parents, guardians or legal representatives on behalf of minors, parents, guardians or representatives legally, these persons will be liable and comply with the “Clicknic” terms and conditions of use, including the “Clicknic” notice.
  System usage awareness
- “Doctors” or “counselors” will provide advice through “Clicknic” according to the information received at that time for the benefit of users. The user must provide complete, accurate, true information, and should closely observe the change of symptoms. However, providing the complete, accurate and true information to the “doctor” or “counselor” does not confirm the accuracy in any consultation or to attach a “doctor” or “counselor” for such advices.
- In the event that symptoms change after consulting whether it is as expected or not according to the expectations of “doctors” or “counselors”, the users are aware that decision-making in any action is the responsibility of the user, and it does not bind, or is the responsibility of “doctor” or “counselor.”

Our “counselor” or “doctor”

- “Counselor” or “Doctor” that appears in the “App” means only doctors, dentists, and pharmacists that are licensed to practice the medical profession, dentists and pharmacists as specified by Thai law. The doctors, dentists and pharmacists that are suspended or terminated for any reason will not be allowed to participate in “App” in any case, such as sending “content” to “App” as our “counselor”.
- Whenever “we” use the words “your doctor” or “doctor” or “healthcare provider” or “counselor” or any other term with a similar meaning in ” App “, including in the” Terms of Use “, the word ” We”means your personal doctor, and you and the doctor accept that it is the “doctor-patient relationship” in Thailand. Please be aware that “Counselors” and “Doctors” that appear in the “App” are not your doctor or healthcare provider in any way.
- “Counselors” and “doctors” or experts who have made use of Or being accepted into “App” is not an employee Independent contractors or representatives of “us” in any way. Any suggestions, information or information That were shown by the said person were all their opinions, suggestions, and information These individuals do not express their views as “us”

in any way. In addition, “we” do not make any recommendations or representations regarding tests, products, procedures, opinions or other information. Including any actions of a counselor or doctor that may be identified in the “App”

- All opinions and statements of the “counselor” and “doctor displayed in or through the” app “are all independent opinions and statements. And not acting as “us” in any way, including not acting as Affiliates, organizations, or any other institutions in which “counselors” and “doctors” or experts are affiliated. Or related as a service provider

Service fees and payment

- “Clicknic” is assigned by the “doctor” or “counselor” to charge consultation fee from users immediately after using the service through various channels as “Clicknic” provided.
- Users agree and accept the terms and conditions of service rates which are shown in advance before receiving the consultation.
- When the user uses the service and got advice from “doctor” or “counselor” from the “Clicknic” system, the user is responsible for paying the fee for counseling through “our” specified channel. Thus, the payment method and the service are subjected to change and are not limited to only “us” above.
- In the event that the payment of the service according to “our” specified channel is interrupted causing the service to not be called for payment, regardless of the cause of the “Clicknic” system, the payment method, or a mistake from the client, as in the aforementioned reasons, it does not cause the user to be exempt from the burden of payment.
- In the case that the user uses the service has an outstanding the burden of payment for consulting services, the users agree to “us” to contact to coordinate and inform the method of payment of service fee and demand for outstanding service fee.
- In the event that you find that the charge of the “doctor” or “counselor” as well as the calculation of the cost of the “system” is incorrect, duplicate, or otherwise wrong, you can contact the coordination center to investigate the said case. The details are as follows:
  In the case of system errors: In the event that it is verified and found that the error is actually occurred, and a system has caused errors for any reason, “we” will return the excess charge to users as well. If the charge is not complete, “we” reserves the right to charge part of the fee that is unpaid.
  In case of disagreement with the service charge: In the case that the user disagrees with the service charge for any reason, “we” will coordinate with your “doctor” or “counselor” due to the right to charge according to the service rates informed in advance, and it is the right of “doctor” or “counselor”.
  Security, personal information, and privacy
- “We” pay more attention to the privacy of users by adhering to the principles related to the minimum usage of personal information of users to be used as it is necessary. We will not reveal or use personal information of users before getting the consent of the user. This does not include the use of information for “services” under the “Clicknic” of “us”. The use of information for the counseling of users of the “doctor” or “user consultations,” includes referrals or emergencies. However,” we “cannot guarantee that treatment measures on the safety of “us” will not be intrusive or led to the use of personal information of users for inappropriate purposes. In the event that users encounter security problems or vulnerabilities, the user is responsible for notifying “us” to immediately resolve the problem.

- By using the “Clicknic” service, users acknowledge and agree that “we” will use the information you share in the “App” as you have specified and in accordance with the law applicable to the case only. In the event that you have created, submitted, or displayed health results Or other information from the use of the “App”, you agree to “us” to use things that you own or have the right to use as set forth in your account as follows:
  1. Consent to collect personal information as well as treatment history;
  2. Consent to disclose personal information as well as treatment history with “doctors” or “counselors” or activities directly related to “services” or related services without any advance notice;
  3. Consent to use the personal information provided in the coordination related to the “service” of “us” and the service of “doctor” or “counselor” as well as other related services as necessary to provide “services” and the consultations by “doctor” or “counselor”.

1. Users can update personal information in the “Clicknic” system which is not related to Service history recorded by “doctors” or “consultants” or “our” staff.
2. Users are not able to transfer their personal accounts or access rights to Clicknic service of their own to any other person. However, users can cancel any personal account with the Clicknic at any time.

Limitation of liability

- “Service” of “Clicknic” is an online service through communication network that the user and the “doctor” or “counselor” are not in the same place. Therefore, the user accepts the limitations as well as technical problems or unwanted reasons whether it is occurring on the client side or on the side of the “doctor” or on the “counselor” or on the “Clicknic” system that may occur during the consultation, both effective and without affecting to the consultation, the service user is not entitled to claim any compensation arising from the said incident.
- In general, “Clicknic” is available 24 hours a day; however, the “Company” will not be liable if the service is not available at any one time; regardless of malfunction or any error which is not the fault of “Clicknic”, both under the control and beyond the control by the “company.”
- “Clicknic” has the right to suspend or cancel access to the “Clicknic” service of the user if the user violates one or more of the terms in this agreement without having the prior notice.

Content and services

- “We” do not provide specific recommendations or certifications regarding “content” “services” tests, doctors, products, procedures, opinions, or any other information. That may be mentioned in the “App” with good common sense, along with the advice of your doctor or the person responsible for providing your health services. “We” cannot guarantee the “content” and “our” “service” will help you achieve your specific goals or results.
- You agree to use the “app” and “service” responsibly and without the following prohibitions: illegal, intimidation, harassment, libel, slander, insult, harmful to minors rude, violent, obscene, invasive, privacy of others Racism, religion, intent to create resentment, hate, or other inappropriate expressions.
- “We” cannot control and fix (or that is, without the ability to have editorial control) or responsible for “content” from third parties. In addition, opinions, statements, products, services, or any other information that is displayed or made available by a third party

(including those of “counselors” or “doctors”) or users on “apps” belong to the said third parties or those users themselves.

- “We” does not guarantee the accuracy or reliability of any opinions, statements or other information provided by third parties and “we” do not guarantee that the use of the “content” displayed or referenced on the “app” will not infringe the rights of any third party that is not owned or affiliated by “us.”
- “Apps” and “Content” are procured only on an as-is basis, and “we” are not responsible for any damages under this “Terms of Use” even though such person knows or should know that the damage may have occurred. However, the limitation of liability in this section is only effective to the extent permitted by law.
- “We” reject all warranties, whether express or implied, such as commercial guarantees, guarantee of non-infringement of rights of third parties, and guarantee of the suitability of a particular purpose and without limitation.
- The authorization of “us” and the partners of “us” are not representations or warranties regarding:
  1. Accuracy, reliability, completeness, currentness, of “content” originating in or through the use of “apps”, whether by “us” or any other persons, or
  2. The “content” or any information accessible through the “App” is consistent with the laws or regulations of Thailand and other countries as well as the accuracy of the said information without inconsistency.

Property rights

- The content, text, document format, and “app” of this “Clicknic” is the copyright of the “company”. The reproduction, copy, modification, copying, or distribution for some or all of Intellectual property on this “Clicknic” without the written permission of the copyright owner is considered an illegal act in violation of and the offender will be punished as specified by the law.
- If any information is specified in the notice, and terms or conditions of use of “Clicknic” that any part or many of the groups together is against the law, it gives a message in the notices, the terms and conditions of using any or all of the “Clicknic” services combined shall be void and other valid conditions of the notice of the “Clicknic” shall remain binding on the users.

Use of your personal information

- “We” pay more attention to the privacy of users by following the principles of use to a minimum Personal information of users will be used as necessary. We will not disclose or use the personal information of users. Before the consent of the user. This does not include the use of data for “services” under the “Clicknic” of “us”. The use of the information for consultation of users from “doctors” or “counselors” includes referrals or emergencies.
- “We” ensures that all stored information is stored safely, and we shall protect the personal information of users by:
  1. Restrict the accessing to personal information;
  2. Provide technological methods to prevent unauthorized access to computer systems as well as data encryption;
  If the user encounters a problem or security vulnerability as well as the reason to believe that person has been violated, please contact “us” to investigate and resolve the said issue.

Personal information and personal accounts

- When the user creates an account to use the “Clicknic” service, “we” will collect various personal information but not limited to these users’ information as follows:
  1. Name-Surname
  2. Date of birth
  3. Gender
  4. Address/ contact location/ document delivery location as well as various parcels
  5. Email
  6. Contact number/ mobile phone number
  7. Credit card information
  8. Health history, drug allergy history, food allergy history, treatment history, and service history etc.
  9. Emergency contact as well as contact information

  Information that users have delivered to “us” through various methods; for example, information filled in
  “App” will be stored in the system. Users are responsible for delivering true and complete information without causing misunderstandings, which may directly affect the use of the service.
- The user is responsible for keeping your personal information up to date and always inform “us” about changes. However, “we” reserve the right to request additional documents to verify that the information that the user can deliver to “us” is correct. In addition, the user can update personal information in the “Clicknic” system that is not related to service history recorded by “doctors” or “consultants,” or “our” staff.
- If the service users do not deliver personal information or provoke the consent to use of personal information, “we” reserves the right to suspend and cancel “our” service to that user.
- In the case that the user submits third-party data to “us”, it will be considered that the person delivering the information is consent or permission from third parties involved to disclose and deliver personal information to “us” (such as a minor).
- If the user creates a personal account via a Social Media Account or connecting a “Clicknic” account with a user’s social media account, “we” may access the information that users have voluntarily provided with the Social Media Account.
- Personal account and Clicknic service usage access rights that are created is a personal account cannot transfer to any other person. However, the user can cancel the personal account with Clicknic at any time.

The use and disclosure of personal information

- “We” pay more attention to the privacy of users by following the principles of use to a minimum Personal information of users will be used as necessary. We will not disclose or use the personal information of users. Before the consent of the user. This does not include the use of data for “services” under the “Clicknic” of “us”. The use of the information for consultation of users from “doctors” or “counselors” includes referrals or emergencies.
- “We” ensures that all stored information is stored safely, and we shall protect the personal information of users by:
  1. Restrict the accessing to personal information;
  2. Provide technological methods to prevent unauthorized access to computer systems as well as data encryption;

If the user encounters a problem or security vulnerability as well as the reason to believe that person has been violated, please contact “us” to investigate and resolve the said issue.

- In using the “Clicknic” system, the user information provided to the system will be used for benefits and activities related to services by being disclosed only to the relevant parties under the consent of the user as follows:

  1. Consent to disclose personal information as well as treatment history with “doctors” or “counselors” or activities directly related to “services” or related services without prior notice.

  2. Consent to use the personal information provided to coordinate with the “service” of “us” and the service of “doctor” or “counselor” as well as other related services as necessary to provide “services” and “doctor” or “counselor” rights of “our” “Clicknic.”

  “We” will regularly check and evaluate the effectiveness of this privacy policy and reserve the right to change the privacy policy without prior notice. “Our” user’s privacy policy are able to be accessed every time through the “app” of “our” “Clicknic.”

- Users acknowledge and agree that, in the case that the agency having legal authority, regulatory agencies, government agencies, tax agency, legal enforcement agencies, and other relevant departments or owners of various rights under reasonable grounds believed that the disclosure of users’ personal information is necessary for the performance of their duties, liability, management, and agreements whether voluntarily or force for the purpose of Cooperating with orders, investigations and/or requests in various forms of that agency, subject to the relevant laws, “we” have the right to disclose the personal information of users under the above circumstances without notice and users shall not prosecute and shall not have any other claims against “us.”

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